

Serious Fraud Investigation Office Vs Adarsh Build Estate Ltd. & 186 others

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Present: Sh. Hari Kishan, Senior Prosecutor for SFIO along with Sh. Lokender Singh Raghav, Standing Government Counsel for the complainant -SFIO and Sh. Arjun Kohli and Ms. Kajal Soni, Law Consultant

Accused No. **113**/Mukesh Modi, No. **114**/Rahul Virender Modi, No. **120**/Vibhav Lodha, No. **123**/Rohit Modi, No. **125**/Rajeshwar Singh, No. **126**/Bharat Modi, No. **131**/Ishwar Singh Sindal, No. **134**/Vivek Purohit, No. **142**/Bharat Das Vishnav and No. **177**/Rajiv Kumar Rana are in custody not produced by jail authorities.

Accused Vivek Harivasi (**115**), Vijay Shukla (**149**), Raj Kumar Modi (**176**), and Surender Singh (**140**) on interim bail granted by Hon'ble Apex Court vide orders dated 17.12.2020 and 29.10.2021 respectively.

Vimal Sanwal Sharma (**147**), Ajit Singh (**150**), Ramlal Arya (**158**), Hemant Kumar (**159**), Parveen Kumar (**161**), Nazima Khan (**152**) Shabbir Khan (**153**) (Raj Kumar Bohra (**171**) Dishan **182** to **186** in person being on bail.

Accused Aditya Sarda (**141**), Leena Harivassi (**146**), Ravi Kr. Tak (**166**), Damyanti Bhandari (**179**) not present (**exemption filed**)

Accused Bharat Kumar Mardia (**No.154**) not present (exempted permanently) but represented by Sh. Peeyush Jain, Advocate.

Accused Akshat Singh (**No. 136**) on bail (not present -**exemption filed**) represented by Sh. Vishal Gupta, Advocate.

Accused Abhay K. Shah (**No. 127**) On bail (not present -**exemption filed**) represented by Sh. Nitin Desodia, Advocate.

Accused Shiv Raj Sharma (**No. 160**) not present but represented by Sh. Apoorv Kumar Yadav, Advocate.

AR Kanak Krishi of accused Company (**No. 106**) In person represented by Sh. Nitish Bhardwaj, Advocate.

Accused company SEARS Built Pvt. Ltd. (**83**) **not present**,
Alba Polymers Ltd. (**101**) **in person**.

Padamawati Art creation Pvt. Ltd. **(107)** (exemption filed)
represented by Sh.Karan Sinha, Advocate
Vishal Ditigal Studio **(112)** not present (**Exemption filed**)

Accused Jainam Rathore (No. **130**) on bail granted by
Hon'ble Supreme Court vide order dated 18.04.2022 in
SLP No. 1554 of 2022 with Sh. J.H. Khan, Advocate.

Sh. Manul Mitra, Advocate for accused Meenakshi Modi
(No. **132**) and Neha Ghemawat Modi (No. **124**)
(**Exemption filed**)

Sh. Neeraj Dev Gaur, Advocate for accused Megha
Chauhan (**No. 163**) (exemption filed)

Accused nos. **144,145,148,151** on bail but granted personal
exemption till further orders vide order dated 22.11.2019,
represented through Shri Vishal Gupta, Advocate.

Accused Nos. **156** and **157** on bail but exempted from
personal appearance till further order vide order
31.01.2020, represented through Shri Piyush Jain,
Advocate.

Accused Nos. **163** and **164** on bail but exempted from
appearance for today only, represented through Shri Neeraj,
Advocate.

Accused Nos. **167, 168, 169** on bail but granted permanent
exemption) vide order dated 04.09.2019,

Accused No. **174** on bail but granted personal exemption
till further order vide order dated 19.02.2021, represented
through Shri Dinesh Kumar, Advocate.

Accused Nos. **180, 181** on bail but granted personal
exemption till further orders vide order 22.11.2019,
represented through Sh.Nitin Desodia, Advocate.

Accused Nos. **1** to **70**, companies, represented through
accused Rahul Modi (123) in custody in Jaipur jail.

Accused Nos. **71** to **78**, companies, through accused
Sidharth Chauhan (**135**) on interim order granted by
Hon'ble High Court.

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Accused No. **79**, company represented through accused Vivek Hari Vyas (**115**) presently on interim bail granted by Hon'ble apex Court vide order dated 17.12.2020

Accused Nos. **80**, company, through accused Naveen Kumar (**139**).

Accused Nos. **81** and **82**, companies, represented through accused Surender Singh (140) who is on interim bail granted by Hon'ble Apex Court vide order dated 29.10.2021.

Accused Nos. **84**, company, represented through accused Abhya K. Shah (**127**) represented by Sh.Nitin Desodia, Advocate

Accused Nos. **85**, company, through accused Jainam Rathod (No.130).

Accused Nos. **86**, **87** and **88**, companies, represented through AR Ravi Kumar Tak, AR (**166**) not present (**Exemption filed**)

Accused No. **89**, company, through accused Raj Kumar Bohra (171) on bail in person.

Accused Nos. **90** to **93**, companies, represented through accused Vivek Hari Vyas (**115**), on interim bail granted by Hon'ble Apex Court vide order 17.12.2020

Accused Nos. **94** to **97**, companies, represented through Shri Rahul, AR, in person

Accused Nos. **98**, company, represented through Shri Naresh Kumar, AR, in person

Accused Nos. **99** and **100**, companies, represented through accused Raj Kumar Modi (**176**) on interim bail granted by Hon'ble apex Court vide order 16.08.2021

Accused No. **102**, company, represented through Shri Deepak, AR, in person

Accused No. **103**, company, represented through Shri Dharmender, AR in person

Accused No. **104**, company, represented through Shri Vicky, AR, in person

Accused No. **105**, company, represented through Shri Anup AR

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in person

Accused No. **106**, company, represented through Shri Kashi Nath Jha, AR , in person

Accused No. **108**, company, represented through Shri Jinsan, AR , in person

Accused No. **109**, company, represented through Shri Vikas Paul, AR , in person

Accused Nos. **110**, company, represented through Shri Raju Yadav, AR in person

Accused No. **111** company, represented through Shri Ritik Sharma, AR in person

Accused Nitin Rathore (**116**) in person.

Proceeding under Section 174-A Cr.PC initiated vide order dated 27.07.2022 against accused Vinay Kumawat (**119**)

Sudhir Punia (**143**), not produced

Accused No. **117** (Priyanka Modi) on bail not present (**Exemption filed**) represented by Sh.Manul Mittra, Advocate.

None for the accused Shinder Pal (**137**)

Accused (No. **187**) Mahesh Kumar not present (**exemption filed**)

Proceedings qua accused Mahender Kumar Tak (155) and Vijay Kumar Jindal (175) abetted vide order dated 25.03.2022.

Shri Manul Mittra Advocate for accused Bharat Modi (126), Vaibhav Lodha (120), Ishwar Singh (131), Rohit Modi (123), Bharat Das Vaishnav (**142**).

Shri Karamveer Advocate for accused Abhey K. Shah (**127**), accused no. **84**, Icchhita Dunderwal (**180**) and Neha Kataria (**181**).

Accused Paras Boli (**121**) on bail not present exemption filed.

Accused-**172** Saurabh Tak, (**exemption filed**) A-**170** Sudhir Mehta, **exemption filed**)

A-**165** Shyam Bihari Gupta, A-**128**, Manish Chaudhary, A-**129** Deepak Shrimali and A-**118** Jitender Vyas on bail.

For Awaiting Death Report

Death report of accused No.122 (Virendere Modi) has not been filed. Now death report of accused No.122 (Virender Modi) be called for **29.07.2024** through SHO concerned.

(Accused Marked their presence)

Accused No. 115 Vivek Harivyas, No.116 Nitin Rathore, No.118 Jitender Vyas, No. 128 Manish Chaudhary, No. 129 Deepak Shrimali, NO.130 Jainam Rathor, No.133 Parkash Chandra Purohit, accused No. 139 Naveen Kumar, accused No. 140 Surender Singh, No. 147 Vimal Sanwarmal Sharma, accused No. 149 Vijay Shukla, No. 150 Ajit Singh Rathore, No. 152 Nazima Khan, No. 153 Shabbir Khan, No. 158 Ramlal Arya, No. 159 Hemant Kumar Jain, No. 161 Praveen Kumar, No. 165 Shyam Bihari Gupta, No.171 Raj Kumar Bohra, No. 173 Peeyush Aggarwal, No. 176 Raj Kumar Modi, No. 178 Mahesh Dutt Sharma, No. 182 Nimesh Kumar Ramsh Chandra Soni, No. 183 Rituraj Singh, No. 184 Dushyant Singh Rathor, No. 185 Shashank Shekhar Singh Rathore. No.186 Jitesh Kumar.

(Application for seeking exemption)

Separate applications seeking exemption from personal appearance on behalf of accused No.117 (Priyanka Modi), Meenakshi Modi (No. 132) and Neha Ghemawat Modi (No. 124) accused No. 121 (Paras Bolia), accused No.127 (Abhay K. Shah), accused NO.136 (Akshat Singh), Accused No.138 (Gurbir Singh Sandhu), accused No. 141 (Aditya Sarda), accused No. 162 (Naveen Chaudhary), accused **No. 163** (Megha Chauhan) accused **No. 164** (Indu Tak), accused No. 166 (Ravi Tak) Accused No. **170** (Sudhir Mehta), Accused No.171 (Raj Kumar Bohra), accused NO. **172** (Saurav Tak), accused No.187 (Mahesh Kumar Tak) have been filed. Heard. In view of the grounds mentioned in the application, the same are allowed and the accused named above are exempted from personal appearance for today only.

Bailable warrants issued against accused No.117 (Priyanka Modi) received back unserved.

Sh. Manul Mittra, Advocate has filed an application seeking permanent exemption of accused No.117 (Priyanka Modi). In view of the grounds mentioned in the application, personal appearance of accused No. 117 (Priyanka Modi) is exempted for today only.

Bailable warrants issued against AR of accused No.107 (Padmawati Art Creation Pvt. Ltd.) received back unserved.

Sh. Karan Sinha, Advocate has filed an application seeking personal exemption of AR of accused No.107 ((Padmawati Art Creation Pvt. Ltd.)). In view of the grounds mentioned in the application, personal appearance of AR accused No. 107 (Padmawati Art Creation Pvt. Ltd.) is exempted for today only.

As far as accused Meenakshi Modi (**132**) and Neha Ghemawat Modi (**124**) are concerned, in terms of undertaking given by their counsel on dated 09.02.2024, they have to appear today but they have filed application seeking exemption from personal appearance and same have been allowed however, today their counsel undertakes that both the accused will appear before the Court on the next date of hearing.

(application seeking permanent exemption)

Seperate applications seeking permanent exemption of accused No.**146** (Leena Harivyasi), accused No. **150** (Ajit Singh Rathor), accused No. **158** (Ram Lal Arya), accused No. **159** (Hemant Kumar Jain), accused No. 161 (Parveen Kumar), accused No. 171 (Raj Kumar Bohra), accused No. **174** (Paramvir Singh Sangwan), accused No. **179** (Damyanti Bhandari) accused No. **182** (Nimesh Kumar Ramesh Chand Soni), accused No. **184** (Dushyant Singh Rathore) accused No. **183** (Ritu Raj Singh), accused No. **185** (Shashank Shekhar Singh Rathore) accused No. **186** (Jitesh Kumar Parmar) have been filed. In view of the grounds mentioned in the applications, their personal appearance is exempted till further orders.

As far as accused No. 171 (Raj Kumar Bohra) is concerned, permanent exemption is allowed to him on the condition that he shall mark his presence in Indian Embassy at Dubai Once in a month. Further before going to any other country, he shall seek permission in this regard from this Court.

(Proceedings adjourned before High Court qua accused No. 135)

As far as accused Siddharth Chauhan (135) is concerned, learned Prosecutor for SFIO has stated that 'Interim order of P.O. proceedings adjournment in force.' Heard. The PO proceedings qua accused Siddhartha Chauhan (135) is adjourned beyond the date fixed in the Hon'ble High Court. Now to come up on **29.07.2024** *for awaiting further orders of Hon'ble High Court.*

(Application under Section 306 of Cr.P.C. on behalf of accused No. 160 Shivraj Sharma)

Instead of filing reply, learned prosecutor has made no objection on the application filed under Section 306 of the Code of Criminal Procedure, 1973, in view of no objection, the said application stands allowed. Accused No. **160 Shivraj Sharma** shall remain present on the next date of hearing for making statement.

(Production warrants of accused)

Accused No. **113/Mukesh Modi**, No. **114/Rahul Virender Modi**, No. **120/Vibhav Lodha**, No. **123/Rohit Modi**, No. **125/Rajeshwar Singh**, No. **126/Bharat Modi**, No. **131/Ishwar Singh Sindal**, No. **134/Vivek Purohit**, No. **142/Bharat Das Vishnav Sudhir Punia (143)** and No. **177/Rajiv Kumar Rana** are in custody not produced by jail authorities. Therefore, their production warrants in the name of Superintendent, Distt. Jail concerned be issued to produced them before the Court through VC on the date fixed

(Approvers)

Statement of five accused persons namely **Parveen Kumar (161)**, **Nimesh Kumar Ramesh Soni (182)**, **Ritu Raj Singh (183)**, **Shashank Singh Rathore (185)** and **Jitesh Kumar Parmar (186)**, were recorded on 22.05.2023

(Awaiting further orders)

Accused namely Vivek Harivyasi (**115**), Surender Singh (**140**), Raj Kumar Modi (**176**) are on interim bail granted by the Hon'ble Supreme Court vide orders dated 17.12.2020, 29.10.2021 and 16.08.2021 respectively. Now to come up on **29.07.2024** for appearance.

Accused namely Vijay Shukla (**149**) has been granted interim protection by the Hon'ble Supreme Court vide order dated 26.10.2021. Accused present in person. Now to come up on **29.07.2024** for appearance.

proclamation issued

Today the case is fixed for presence of accused Accused No.**137** (Shinder Pal Singh) . Case called several times since morning but none appeared on behalf of accused Accused No.**137** (Shinder Pal Singh) . It is already 1500 hours. Further wait is not justified. Mandatory period of 30 days expired. Hence, accused Accused No.**137** (Shinder Pal Singh) is declared proclaimed person. Necessary intimation in this regard be sent to the concerned police station forthwith.